

# Track 1 — Chapter Build Pass

MPEP Chapter 2400 · Biotechnology

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Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

## Overview: A Specialized Chapter for Biological Inventions

This is genuinely specialized subject matter — most relevant if you're headed toward biotech practice. The core testable ideas (deposits supplementing §112, standardized sequence listings) are narrow but clean, specific points if this area does come up.

### Rule 1: Deposit of Biological Material (§2402)

#### PLAIN ENGLISH

For inventions involving biological material that can't be adequately described in words alone to satisfy §112 (e.g., a novel microorganism strain), the applicant may satisfy enablement/written description by making a **deposit** of the material with a recognized depository, referenced in the specification — this substitutes for (or supplements) a purely written disclosure.

#### EXAMPLE

An applicant claiming a newly isolated, hard-to-otherwise-describe bacterial strain deposits a culture of it with an approved depository and references that deposit (including depository name and accession number) in the specification, helping satisfy the enablement and written description requirements for that biological material.

#### QUIZ

**Why might an applicant deposit biological material with a recognized depository?**

- (A) To obtain a design patent instead of a utility patent
- (B) To help satisfy enablement/written description requirements when written description alone is inadequate
- (C) To avoid paying maintenance fees
- (D) To establish a foreign filing license

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### Rule 2: Sequence Listings (§2422)

#### PLAIN ENGLISH

Applications disclosing nucleotide or amino acid sequences must generally include a **sequence listing** in a standardized electronic format (following WIPO Standard ST.26), separate from the main specification text, so sequences can be consistently searched and compared. Failure to comply with sequence listing requirements can result in the application being treated as incomplete for that aspect.

#### EXAMPLE

An application disclosing a novel protein's amino acid sequence must include that sequence in the standardized WIPO ST.26 sequence listing format, in addition to any textual discussion of the sequence in the specification body.

## QUIZ

**What is the purpose of requiring nucleotide/amino acid sequences to be submitted in a standardized sequence listing format?**

- (A) To reduce the specification's total page count
  - (B) To enable consistent searching and comparison of sequences across applications
  - (C) To determine the applicant's entity status
  - (D) To calculate patent term
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## Rule 3: Deposits and the Written Description/Enablement Requirements (§2411)

### PLAIN ENGLISH

A biological deposit can help satisfy §112 requirements, but it doesn't automatically cure every possible defect — the specification must still generally describe the material's relevant characteristics and its relationship to the claimed invention; the deposit supplements, rather than fully replaces, an adequate written disclosure.

### EXAMPLE

A deposit alone, with no explanation in the specification of what the deposited material is or how it relates to the claimed invention, would likely be insufficient — the deposit needs to be properly referenced and contextualized in the written specification to do its job.

## QUIZ

**Does making a biological deposit automatically satisfy all §112 written description/enablement requirements, regardless of the specification's content?**

- (A) Yes, deposit alone is always sufficient
  - (B) No — the specification must still adequately describe the material's relevant characteristics and relationship to the claim
  - (C) Yes, but only for enablement, not written description
  - (D) No, deposits are never relevant to §112
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## Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

**1. An applicant claims a novel microorganism that's very difficult to describe fully in words. What can help satisfy §112 requirements here?**

- (A) A deposit with a recognized depository, properly referenced in the specification
- (B) A design patent filing instead
- (C) A terminal disclaimer
- (D) A certificate of correction

**2. What format standard governs modern sequence listings for nucleotide/amino acid sequences?**

- (A) WIPO Standard ST.26
- (B) 37 CFR Part 42
- (C) The Paris Convention
- (D) The Hague Agreement

**3. Does a biological deposit alone, without any explanation in the specification, fully satisfy §112?**

- (A) Yes, always
- (B) No — the specification still needs to describe the material's relevant characteristics and relationship to the claim
- (C) Yes, if the depository is well-known
- (D) No, deposits are irrelevant to §112

## Memorize This: Key Tests & Terms

- **Biological material deposit:** helps satisfy §112 when written description alone can't adequately describe the material.
- **Sequence listings** (nucleotide/amino acid sequences) follow the standardized **WIPO ST.26** format.
- A deposit **supplements**, not replaces, an adequate written specification.

## Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

### Rule-Card Quizzes

#### Rule 1: Deposit of Biological Material (§2402)

Why might an applicant deposit biological material with a recognized depository?

Answer: B

Biological deposits are specifically a §112 enablement/written-description tool for material that's difficult or impossible to fully describe in words — not related to fees or foreign filing.

#### Rule 2: Sequence Listings (§2422)

What is the purpose of requiring nucleotide/amino acid sequences to be submitted in a standardized sequence listing format?

Answer: B

Standardized sequence listings exist specifically to make sequence data consistently searchable and comparable — a technical/formatting requirement distinct from substantive patentability standards.

#### Rule 3: Deposits and the Written Description/Enablement Requirements (§2411)

Does making a biological deposit automatically satisfy all §112 written description/enablement requirements, regardless of the specification's content?

Answer: B

The deposit supplements, rather than replaces, an adequate written specification — a bare, unexplained deposit doesn't automatically satisfy §112 on its own.

### Chapter Close-Out Quiz

#### 1. (A)

A properly referenced deposit with a recognized depository is the specific tool for helping satisfy §112 when written description alone is inadequate for hard-to-describe biological material.

#### 2. (A)

WIPO Standard ST.26 is the current standardized format for sequence listings.

#### 3. (B)

A deposit supplements rather than replaces an adequate written specification — the application still needs to describe the material's relevant characteristics and connect it to the claimed invention.